

17/2002

Police Department Circulars » Motor Transport »



No. U6-30380/2002
Police Headquarters,
Thiruvananthapuram,
Dated: 05-12-2002.

CIRCULAR NO. 17/2002

Sub: - Public order – use of Loud Speakers – Revision of system of granting licence – instructions issued.

Ref: - 1. PHQ Circular Nos. 26/1974, 7/1980 and 28/1995.

Under the provisions of the Environment (Protection) Act 1986 the Government of India had issued Noise Pollution (Regulation and Control) Rules 2000. The objective of the Rules read with the Provisions of the Act is to reduce the level of sound pollution caused by unrestricted use of loud speakers.

In the light of the Act and Rules and in accordance with the regulatory functions under the Kerala Police Act 1960, a Notification dated 28-11-2002 has been issued by the Director General of Police prescribing regulations regarding grant of licences for use of loud speakers. (Annexure-1). A specimen of the form prescribed vide item 5 of the Notification is given in Annexure -2.

Therefore in super session of the PHQ Circulars referred above, the following instructions are issued for achieving uniformity in implementation of the Notification.

1. The Competent authority for issue of the licence is prescribed as either the SDPO or SP/CP. Since the competent Officer is required to have adequate knowledge of the classification of Zones and the permitted level of sound (in decibels), applications for licence will not be entertained by Range DIGs, Zonal IGP's and PHQ's.
1. The sanctioning authority shall ensure that all the particulars required in Column 1 to 4 are furnished in the prescribed form, while issuing the licence.
1. No licence shall be granted to an applicant for use of loud speakers for more than 10 days under one application.

1. It will be the personal responsibility of the competent authority to ensure that the licence is issued strictly in accordance with the conditions laid down in the Notification.
1. Before the grant of licence the competent authority should be aware of the classification of the various zones in his jurisdiction and the level of the sound (in decibels) allowed in each zone.

It is clarified that with the issuance of this Notification, the restrictions ordered by the Hon'ble High Court of Kerala in WA No. 3125 of 2001 are no more operative.

It is expected that with proper application of mind by SDPOs/SPs/CPs, the provisions of the Notification will be enforced effectively and the objectives of the Environment (Protection) Act 1960 and the Noise Pollution (Regulation and Control) Rules 2000 achieved.



K.J. JOSEPH
DIRECTOR GENERAL OF POLICE.

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